

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 43542/07
TÚLÉLÉS 98 EGYESÜLET
against Hungary

The European Court of Human Rights (Second Section), sitting on 10 January 2012 as a Chamber composed of:
Françoise Tulkens, *President,*
Dragoljub Popović,
Isabelle Berro-Lefèvre,
András Sajó,
Guido Raimondi,
Paulo Pinto de Albuquerque,
Helen Keller, *judges,*
and Françoise Elens-Passos, *Deputy Section Registrar,*
Having regard to the above application lodged on 27 September 2007,
Having deliberated, decides as follows:

THE FACTS

The applicant, Túlélés 98 Egyesület, is an association registered under Hungarian law, with its seat in Budapest. The application was lodged on 27 September 2007. The applicant was represented before the Court by its chairperson, Ms M. Gecse. The Hungarian Government ("the Government") were represented by Mr L. Höltzl, Agent, Ministry of Public Administration and Justice.

The applicant complained about the frustration of its right to peaceful assembly. It relied on Articles 6, 9, 11, 13 and 14 of the Convention.

The applicant's complaints were communicated to the Government on 5 January 2011, who submitted their observations on the admissibility and merits on 21 April 2011. On 27 April 2011 the observations were forwarded to the applicant, which was invited to submit its own observations, together with its just satisfaction claims. No reply was received to the Registry's letter.

By letter dated 5 July 2011, sent by registered post, the applicant was notified that the period allowed for submission of its observations had expired on 8 June 2011 and that no extension of time had been requested. The applicant received this letter on 16 July 2011. However, no response has been received. A further enquiry sent on 27 July 2011 has also remained unanswered.

THE LAW

The Court considers that, in these circumstances, the applicant may be regarded as no longer wishing to pursue its application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Françoise Elens-Passos Deputy Registrar	Françoise Tulkens President